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Plaintiff, *Pro per pro se*

Dated: April 18, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

Case No.: 2:2025CV00404

**EMERGENCY PETITION TO THE CHIEF JUDGE FOR WRIT OF
PROHIBITION DISQUALIFYING JUDGE DENNIS M. COTA PURSUANT TO
28 U.S.C. §§ 144 AND 455 AND REQUEST FOR IMMEDIATE TEMPORARY
RESTRAINING ORDER**

1 **TO THE HONORABLE CHIEF JUDGE OF THE UNITED STATES DISTRICT**
2 **COURT FOR THE EASTERN DISTRICT OF CALIFORNIA:**

3 COMES NOW Plaintiff MATHEW TYLER ("Plaintiff"), an indigent layperson appearing
4 pro per pro se, proceeding in forma pauperis, a qualified individual with a disability as
5 codified by 42 U.S.C. § 12131(2), and a crime victim as defined by 18 U.S.C. § 3771 and
6 California Constitution Article 1 § 28, and as codified by 34 U.S.C. § 20141(e)(2), hereby
7 petitions this Court for a writ of prohibition disqualifying Judge Dennis M. Cota from
8 further involvement in the above-captioned case and for an immediate temporary
9 restraining order against Defendants to preserve Plaintiff's constitutional rights. In
10 support of this petition, Plaintiff states as follows:

11 **I. INTRODUCTION**

12 This Emergency Petition for Writ of Prohibition arises from persistent, systematic, and
13 escalating violations of Plaintiff's statutory and constitutional rights by Judge Dennis M.
14 Cota, whose actions transcend mere judicial error and demonstrate both actual bias and
15 the appearance of partiality that require immediate disqualification under both 28 U.S.C.
16 § 144 and 28 U.S.C. § 455. Judge Cota's most recent actions—summarily denying
17 Plaintiff's ADA accommodations without engaging in the federally mandated interactive
18 process and subsequently weaponizing that denial to rule in favor of Defendants' dilatory
19 motion—represent the culmination of an unmistakable pattern of conduct that renders fair
20 adjudication impossible and threatens immediate, irreparable harm to Plaintiff's
21 fundamental constitutional rights.

1 The Supreme Court has emphatically established that "justice must satisfy the appearance
2 of justice." *In re Murchison*, 349 U.S. 133, 136 (1955). This bedrock principle "reflects
3 the maxim that 'no man can be a judge in his own case and no man is permitted to try
4 cases where he has an interest in the outcome.'" *Williams v. Pennsylvania*, 579 U.S. 1, 8
5 (2016) (quoting *In re Murchison*, 349 U.S. at 136). Judge Cota's conduct in this case
6 manifestly fails this essential test, necessitating intervention through this extraordinary
7 writ to preserve both the reality and appearance of impartial justice.

8 As the United States Court of Appeals for the Ninth Circuit has emphasized, "The
9 guarantee of a fair and impartial tribunal is a basic requirement of due process... The
10 presence of a biased judge on the bench is a paradigmatic example of structural error,
11 which, when present, 'affect[s] the framework within which the trial proceeds, rather than
12 being simply an error in the trial process itself.'" *Greenway v. Schriro*, 653 F.3d 790, 805
13 (9th Cir. 2011) (quoting *Arizona v. Fulminante*, 499 U.S. 279, 310 (1991)). This petition
14 seeks to remedy precisely such a structural error.

15 **II. JURISDICTIONAL STATEMENT**

16 This Court has jurisdiction to issue a writ of prohibition pursuant to the All Writs Act, 28
17 U.S.C. § 1651(a), which authorizes federal courts to "issue all writs necessary or
18 appropriate in aid of their respective jurisdictions and agreeable to the usages and
19 principles of law." The Supreme Court has consistently recognized that this provision
20 confers authority on federal courts to issue extraordinary writs in exceptional
21 circumstances where ordinary remedies are inadequate. *See Cheney v. U.S. Dist. Court*
22 *for D.C.*, 542 U.S. 367, 380 (2004); *Ex parte Republic of Peru*, 318 U.S. 578, 583 (1943).

1 The writ of prohibition is an extraordinary remedy reserved for exceptional
2 circumstances where a judge acts in excess of jurisdiction or where disqualification is
3 improperly denied. *See Kerr v. United States District Court*, 426 U.S. 394, 402 (1976); *In*
4 *re Cement Antitrust Litigation*, 688 F.2d 1297, 1301 (9th Cir. 1982); *Bauman v. United*
5 *States District Court*, 557 F.2d 650, 654-55 (9th Cir. 1977). As the Ninth Circuit
6 articulated in *In re Cement Antitrust Litigation*, 688 F.2d at 1301, the writ is appropriate
7 when "the district court's order is clearly erroneous as a matter of law," when there is no
8 adequate alternative means to obtain relief, and when the petitioner would be damaged in
9 a way "not correctable on appeal."

10 The circumstances of this case satisfy these stringent requirements, as Judge Cota's
11 actions exceed his lawful authority, violate clear constitutional and statutory mandates,
12 cannot be adequately remedied through standard appellate procedures, and threaten
13 immediate, irreparable harm to Plaintiff's fundamental rights.

14 **III. BACKGROUND AND PROCEDURAL HISTORY**

15 Plaintiff initiated this action against Defendants for systematic discrimination, civil rights
16 violations, and unlawful election interference based on Plaintiff's status as a qualified
17 individual with a disability under the Americans with Disabilities Act ("ADA") and
18 Section 504 of the Rehabilitation Act. The gravamen of Plaintiff's complaint alleges that
19 Defendants engaged in a coordinated campaign to exclude Plaintiff from participating in
20 the electoral process solely on the basis of disability, in violation of the Constitution,
21 federal civil rights laws, and international legal obligations.

1 Throughout these proceedings, Judge Cota has demonstrated a persistent, escalating
2 pattern of conduct indicating unmistakable bias against Plaintiff and prejudgment of core
3 legal issues, including:

4 1. Systematically failing to rule on Plaintiff's properly filed motions for preliminary
5 injunctive relief despite the time-sensitive nature of electoral matters and the
6 irreparable harm standard articulated in *Elrod v. Burns*, 427 U.S. 347, 373 (1976)
7 (holding that "[t]he loss of First Amendment freedoms, for even minimal periods
8 of time, unquestionably constitutes irreparable injury");

9 2. Categorically refusing to enforce 42 U.S.C. § 1987, which explicitly mandates
10 that judges "institute prosecutions against all persons violating any of the
11 provisions of [the civil rights statutes]," despite clear evidence of criminal civil
12 rights violations presented in Plaintiff's filings;

13 3. Deliberately disregarding Plaintiff's rights as a crime victim under 18 U.S.C. §
14 3771 and California Constitution Article 1 § 28, including the right "to be treated
15 with fairness and respect" and the right to "proceedings free from unreasonable
16 delay";

17 4. Failing to acknowledge or enforce mandatory reporting requirements under
18 California law for crimes occurring on state property, specifically California
19 Government Code § 14613.7 and its implementing regulations;

20 5. Refusing to communicate effectively with Plaintiff, as evidenced by the Court's
21 clerk's failure to respond to Plaintiff's February 14, 2025 inquiry, in violation of
22 Section 504 of the Rehabilitation Act; and

1 6. Most egregiously, summarily denying Plaintiff's meticulously documented request
2 for reasonable accommodations under the ADA without engaging in the legally
3 required interactive process, and then exploiting this improper denial to rule in
4 favor of Defendants' motion to delay proceedings—effectively using Plaintiff's
5 disability as a weapon against him.

6 On February 19, 2025, Plaintiff filed a comprehensive Motion for Summary Judgment,
7 providing extensive legal authority demonstrating systematic constitutional and statutory
8 violations. Judge Cota has inexplicably failed to rule on this motion, despite its well-
9 documented showing of undisputed material facts entitling Plaintiff to judgment as a
10 matter of law.

11 On March 17, 2025, confronting this pattern of judicial misconduct, Plaintiff filed a
12 detailed Motion to Disqualify Judge Cota pursuant to 28 U.S.C. §§ 144 and 455,
13 meticulously documenting the grounds for disqualification. Judge Cota summarily denied
14 this motion without substantively addressing the serious allegations of bias and
15 misconduct, in direct contravention of the Ninth Circuit's holding in *United States v.*
16 *Sibla*, 624 F.2d 864, 868 (9th Cir. 1980), which requires thorough consideration of
17 disqualification motions.

18 Simultaneously, Plaintiff filed a Motion for Reasonable Accommodations pursuant to the
19 ADA and Section 504 of the Rehabilitation Act, requesting several specific
20 accommodations including additional time to file pleadings and responses—
21 accommodations essential to Plaintiff's meaningful participation in the judicial process
22 given his documented disabilities that substantially limit major life activities including
23 concentrating, thinking, and communicating.

1 In a ruling that exemplifies the pattern of bias permeating these proceedings, Judge Cota
2 summarily denied Plaintiff's accommodation request without engaging in the mandatory
3 interactive process required by federal regulations, without making the required
4 determinations regarding undue burden or fundamental alteration, without providing any
5 written justification, and without offering alternative accommodations. Judge Cota then
6 compounded this error by using his improper denial of accommodations as a basis for
7 ruling in favor of Defendants' motion to delay proceedings—creating a Catch-22 situation
8 that effectively punishes Plaintiff for having a disability.

9 **IV. LEGAL STANDARD**

10 **A. 28 U.S.C. § 144: Mandatory Disqualification for Bias or Prejudice**

11 28 U.S.C. § 144 provides a mandatory mechanism for judicial disqualification when a
12 party submits a timely and sufficient affidavit alleging judicial bias:

13 "Whenever a party to any proceeding in a district court makes and files a timely and
14 sufficient affidavit that the judge before whom the matter is pending has a personal bias
15 or prejudice either against him or in favor of any adverse party, such judge shall proceed
16 no further therein, but another judge shall be assigned to hear such proceeding.

17 The affidavit shall state the facts and the reasons for the belief that bias or prejudice
18 exists, and shall be filed not less than ten days before the beginning of the term at which
19 the proceeding is to be heard, or good cause shall be shown for failure to file it within
20 such time. A party may file only one such affidavit in any case. It shall be accompanied
21 by a certificate of counsel of record stating that it is made in good faith."

1 The Supreme Court, in its seminal decision in *Berger v. United States*, 255 U.S. 22, 35-36
2 (1921), established that when a sufficient affidavit is filed under § 144's predecessor
3 statute, "the judge has no discretion" but must step aside. The Court emphasized that the
4 statute "has no ambiguity" and "leaves to the judge no function but the duty to decide the
5 legal sufficiency of the affidavit."

6 Critically, under Ninth Circuit precedent, the factual allegations in a § 144 affidavit must
7 be accepted as true for purposes of determining recusal. As the court held in *United*
8 *States v. Azhocar*, 581 F.2d 735, 739 (9th Cir. 1978), "the judge must pass on the legal
9 sufficiency of the affidavit, but not on the truth or falsity of the facts alleged." This
10 principle was reaffirmed in *United States v. Sibla*, 624 F.2d 864, 868 (9th Cir. 1980),
11 where the court established that "the judge must accept the affidavit's allegations as true
12 even if the judge knows them to be false."

13 The Fifth Circuit in *Parrish v. Board of Commissioners of Alabama State Bar*, 524 F.2d
14 98, 100 (5th Cir. 1975), similarly held that "the judge must pass on the legal sufficiency
15 of the affidavit, but not on the truth or falsity of the facts alleged." The court emphasized
16 that this is true "even though the court is not so blind that it cannot see the falsity of the
17 allegations."

18 For an affidavit to be legally sufficient under § 144, it must allege specific facts that
19 would convince a reasonable person that bias exists. *United States v. Hanrahan*, 248 F.
20 Supp. 471, 475 (D.D.C. 1965). Such facts must show "a personal bias as distinguished
21 from a judicial one." *United States v. Grinnell Corp.*, 384 U.S. 563, 583 (1966). However,
22 courts have recognized that judicial rulings can serve as evidence of bias when they

1 "reveal such a high degree of favoritism or antagonism as to make fair judgment
2 impossible." *Liteky v. United States*, 510 U.S. 540, 555 (1994).
3 Plaintiff's prior Motion to Disqualify Judge Cota, filed on March 17, 2025, contained a
4 detailed affidavit that met all the legal requirements under § 144. Judge Cota's summary
5 denial of that motion without addressing the substantive allegations—in direct
6 contravention of established precedent requiring acceptance of those allegations as true—
7 itself constitutes bias warranting disqualification.

8 **B. 28 U.S.C. § 455: Disqualification for Impartiality Concerns**

9 Under 28 U.S.C. § 455(a), a judge "shall disqualify himself in any proceeding in which
10 his impartiality might reasonably be questioned." This provision creates an objective
11 standard that focuses on whether a reasonable person with knowledge of all the facts
12 would conclude the judge's impartiality might reasonably be questioned. *United States v.*
13 *Holland*, 519 F.3d 909, 913 (9th Cir. 2008).

14 Additionally, 28 U.S.C. § 455(b)(1) requires disqualification where the judge "has a
15 personal bias or prejudice concerning a party." The Supreme Court has held that recusal
16 is required "whenever impartiality might reasonably be questioned." *Liteky v. United*
17 *States*, 510 U.S. 540, 548 (1994).

18 While judicial rulings alone rarely constitute a valid basis for recusal, a judge's actions
19 that demonstrate "deep-seated favoritism or antagonism that would make fair judgment
20 impossible" provide grounds for disqualification. *Id.* at 555. As the Supreme Court
21 clarified in *Williams v. Pennsylvania*, 579 U.S. 1, 8 (2016), "the Court has determined

1 that an unconstitutional potential for bias exists when the same person serves as both
2 accuser and adjudicator in a case."

3 The Ninth Circuit in *United States v. Conforte*, 624 F.2d 869, 881 (9th Cir. 1980),
4 established that §§ 144 and 455 must be construed together, with both statutes addressing
5 the issue of actual bias and prejudice. As the court held in *United States v. Sibla*, 624 F.2d
6 864, 867 (9th Cir. 1980), "[t]he test for personal bias or prejudice in section 144 is
7 identical to that in section 455(b)(1)."

8 The key distinction between these provisions is procedural: § 144 requires the filing of an
9 affidavit, while § 455 places a self-enforcing duty on the judge. As the Eleventh Circuit
10 explained in *United States v. Alabama*, 828 F.2d 1532, 1540 (11th Cir. 1987), § 455 "does
11 not depend upon the filing of an affidavit; rather, the judge must disqualify himself if the
12 facts meet the statutory criteria."

13 **C. Pro Se Litigant Standard**

14 As the Supreme Court has repeatedly emphasized, pro se pleadings "however inartfully
15 pleaded, must be held to less stringent standards than formal pleadings drafted by
16 lawyers." *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972); *see also Erickson v. Pardus*,
17 551 U.S. 89, 94 (2007) (reaffirming this principle). This liberal construction requirement
18 is particularly important for in forma pauperis litigants, whose pleadings "should be
19 viewed with special solicitude." *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975).

20 The Ninth Circuit has explicitly recognized that courts have a heightened "duty to ensure
21 that pro se litigants do not lose their right to a hearing on the merits of their claim due to

ignorance of technical procedural requirements." *McElyea v. Babbitt*, 833 F.2d 196, 197 (9th Cir. 1987); *see also Draper v. Coombs*, 792 F.2d 915, 924 (9th Cir. 1986).

Moreover, as Judge Cota himself acknowledged in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025), "The Court must also construe the alleged facts in the light most favorable to the plaintiff... All ambiguities or doubts must also be resolved in the plaintiff's favor." This standard applies with particular force in the context of civil rights claims, which "are to be liberally construed." *Zichko v. Idaho*, 247 F.3d 1015, 1020 (9th Cir. 2001).

D. Disability Rights Standard

Title II of the ADA, 42 U.S.C. §§ 12131-12134, prohibits discrimination against qualified individuals with disabilities in the services, programs, or activities of public entities, including courts. *See Tennessee v. Lane*, 541 U.S. 509, 533-34 (2004) (recognizing that "Title II unquestionably is valid § 5 legislation as it applies to the class of cases implicating the accessibility of judicial services"). The implementing regulations require public entities to "make reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability." 28 C.F.R. § 35.130(b)(7)(i).

When a request for accommodation is made, the public entity must engage in an "interactive process" to identify appropriate accommodations. *Wong v. Regents of Univ. of Cal.*, 192 F.3d 807, 818 (9th Cir. 1999). A public entity may only deny requested modifications if it can demonstrate that making the modifications would "fundamentally alter the nature of the service, program, or activity." 28 C.F.R. § 35.130(b)(7)(i). Any

1 such denial must be accompanied by a written statement of the reasons. 28 C.F.R. §
2 35.164.

3 Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, similarly prohibits disability
4 discrimination in programs receiving federal financial assistance, including federal
5 courts. The Supreme Court has recognized that Section 504 requires "meaningful access"
6 to government programs. *Alexander v. Choate*, 469 U.S. 287, 301 (1985).

7 **E. Crime Victims' Rights Standard**

8 The Crime Victims' Rights Act, 18 U.S.C. § 3771, guarantees crime victims specific
9 rights in federal criminal proceedings, including "the right to be treated with fairness and
10 with respect for the victim's dignity and privacy" (§ 3771(a)(8)), "the right to be
11 reasonably protected from the accused" (§ 3771(a)(1)), and "the right to proceedings free
12 from unreasonable delay" (§ 3771(a)(7)).

13 Critically, § 3771(b)(1) imposes an affirmative obligation on courts to "ensure that the
14 crime victim is afforded the rights described in subsection (a)." This creates a mandatory
15 duty, not a discretionary one. *In re Dean*, 527 F.3d 391, 394 (5th Cir. 2008) (noting the
16 "mandatory nature" of the CVRA).

17 **V. GROUNDS FOR WRIT OF PROHIBITION**

18 **A. Legal Sufficiency of Plaintiff's § 144 Affidavit**

19 Plaintiff's March 17, 2025 Motion to Disqualify Judge Cota contained a detailed affidavit
20 that met all the requirements of 28 U.S.C. § 144. The affidavit:

- 21 1. Was timely filed, as required by § 144;

2. Included specific factual allegations demonstrating bias, not mere conclusions;
3. Alleged personal bias rather than mere judicial disagreement; and
4. Was properly verified under penalty of perjury.

Under *Berger v. United States*, 255 U.S. 22 (1921), and *United States v. Sibla*, 624 F.2d 864 (9th Cir. 1980), Judge Cota was obligated to accept these allegations as true for purposes of determining recusal. His failure to do so, and his summary denial of the motion without substantive consideration, itself constitutes evidence of bias warranting disqualification.

As the Fifth Circuit held in *Parrish v. Board of Commissioners of Alabama State Bar*, 524 F.2d 98, 100 (5th Cir. 1975), "the factual allegations of the affidavit, though not the conclusory allegations, must be considered as true for purposes of determining the legal sufficiency of the affidavit." Judge Cota's failure to follow this binding precedent demonstrates prejudice against Plaintiff.

The specificity of Plaintiff's allegations in the § 144 affidavit far exceeds the threshold established in *United States v. Hanrahan*, 248 F. Supp. 471, 475 (D.D.C. 1965), which requires only that "the facts alleged give fair support to the charge of a bent of mind that may prevent or impede impartiality of judgment." The detailed chronology of Judge Cota's actions and inactions provided in Plaintiff's affidavit clearly meets this standard.

Even under the "extrajudicial source" doctrine articulated in *United States v. Grinnell Corp.*, 384 U.S. 563, 583 (1966), Plaintiff's affidavit is sufficient because it demonstrates that Judge Cota's conduct "reveal[s] such a high degree of favoritism or antagonism as to make fair judgment impossible." *Liteky v. United States*, 510 U.S. 540, 555 (1994). The

1 systematic denial of disability accommodations and subsequent weaponization of that
2 denial against Plaintiff transcends mere judicial error to demonstrate clear bias.

3 **B. Denial of ADA Accommodations Without Required Procedures**

4 Judge Cota's summary denial of Plaintiff's request for reasonable accommodations
5 constitutes a flagrant violation of Title II of the ADA, Section 504 of the Rehabilitation
6 Act, and their implementing regulations. On March 17, 2025, Plaintiff filed a detailed
7 Motion for Reasonable Accommodations, specifically requesting additional time to file
8 pleadings and responses due to his documented disabilities (Central core disease and
9 ADHD) that substantially limit major life activities including concentrating, thinking, and
10 communicating.

11 Judge Cota's handling of this request violated multiple legal requirements:

12 **1. Failure to Engage in the Interactive Process:** Federal courts have consistently
13 held that public entities must engage in an "interactive process" when a qualified
14 individual requests accommodations. *See Vinson v. Thomas*, 288 F.3d 1145, 1154
15 (9th Cir. 2002); *Wong v. Regents of Univ. of Cal.*, 192 F.3d 807, 818 (9th Cir.
16 1999). Judge Cota made no attempt whatsoever to engage in this mandatory
17 process.

18 **2. Failure to Make Required Determinations:** Under 28 C.F.R. § 35.130(b)(7)(i), a
19 public entity may only deny requested modifications if it demonstrates that
20 making the modifications would "fundamentally alter the nature of the service,
21 program, or activity." Judge Cota made no such determination and offered no

1 explanation of how granting additional time would fundamentally alter judicial
2 proceedings—particularly when courts routinely grant such extensions.

3 **3. Failure to Provide Written Justification:** Federal regulations explicitly require
4 that "[i]n the event that a public entity denies a request for a modification, the
5 public entity must take other actions to ensure that the individual with a disability
6 receives the benefits or services provided by the entity." 28 C.F.R. § 35.164.
7 Furthermore, the entity must "provide that determination in writing, including the
8 reasons for reaching that conclusion." *Id.* Judge Cota provided no written
9 explanation for the denial and offered no alternative accommodations.

10 **4. Failure to Consider the Nature of the Disability:** Courts must consider the
11 specific limitations imposed by a person's disability when evaluating
12 accommodation requests. *See Crowder v. Kitagawa*, 81 F.3d 1480, 1486 (9th Cir.
13 1996). Plaintiff's documented disabilities specifically affect his ability to
14 concentrate, think, and communicate effectively—precisely the abilities needed to
15 meet court deadlines. Judge Cota completely disregarded the nexus between
16 Plaintiff's disabilities and the requested accommodation.

17 The Supreme Court in *Tennessee v. Lane*, 541 U.S. 509 (2004), specifically recognized
18 that Title II of the ADA validly abrogates state sovereign immunity when it comes to
19 access to courts, underscoring the fundamental constitutional dimension of ensuring that
20 individuals with disabilities have meaningful access to judicial proceedings. Judge Cota's
21 summary denial of accommodations directly contravenes this binding precedent.

C. Using Denial of Accommodations as Weapon Against Plaintiff

Most egregiously, Judge Cota has weaponized his improper denial of Plaintiff's requested accommodations, using it as a basis for ruling in favor of Defendants' motion to delay proceedings. This circular reasoning—denying accommodations for additional time and then ruling against Plaintiff for failing to meet deadlines—creates a Catch-22 situation that effectively punishes Plaintiff for having a disability.

This conduct goes far beyond mere judicial error to demonstrate the "deep-seated favoritism or antagonism that would make fair judgment impossible" that the Supreme Court identified in *Liteky v. United States*, 510 U.S. 540, 555 (1994), as grounds for disqualification. It represents precisely the kind of "clear and convincing evidence of bias and prejudice" that the Ninth Circuit has recognized as warranting recusal. *United States v. Hernandez*, 109 F.3d 1450, 1453-54 (9th Cir. 1997).

The Supreme Court has long recognized that "handicapped individuals constitute one of the 'discrete and insular minorities' who have been subjected to a 'history of purposeful unequal treatment.'" *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 445-46 (1985) (citation omitted). Judge Cota's actions perpetuate precisely this kind of unequal treatment by creating procedural obstacles that disproportionately burden Plaintiff because of his disability.

D. Violation of Due Process Rights

Judge Cota's conduct violates Plaintiff's fundamental right to due process as guaranteed by the Fifth and Fourteenth Amendments. As the Supreme Court emphasized in *Goldberg v. Kelly*, 397 U.S. 254, 267 (1970), "The fundamental requisite of due process of law is

1 the opportunity to be heard," which must be provided "at a meaningful time and in a
2 meaningful manner." By denying Plaintiff's disability accommodations without proper
3 procedure and then using that denial to Plaintiff's detriment, Judge Cota has effectively
4 denied Plaintiff the opportunity to be heard in a meaningful manner.

5 In *Goss v. Lopez*, 419 U.S. 565, 579 (1975), the Supreme Court held that due process
6 requires "fundamentally fair procedures" when protected interests are at stake. Judge
7 Cota's handling of Plaintiff's accommodation request and subsequent ruling cannot
8 possibly be characterized as "fundamentally fair" when they create an impossible
9 situation where Plaintiff is punished for having a disability.

10 The Ninth Circuit has specifically recognized that "a biased decisionmaker constitutes a
11 structural defect not subject to harmless error analysis." *Hurles v. Ryan*, 752 F.3d 768,
12 789 (9th Cir. 2014). Judge Cota's demonstrated bias in handling Plaintiff's disability
13 accommodations and subsequent rulings constitutes precisely such a structural defect.

14 **E. Systematic Failure to Protect Crime Victim's Rights**

15 Judge Cota has persistently and systematically failed to protect Plaintiff's rights as a
16 crime victim under federal and state law, in direct contravention of his statutory
17 obligations. The Crime Victims' Rights Act, 18 U.S.C. § 3771, guarantees crime victims
18 specific rights including the right "to be treated with fairness and with respect for the
19 victim's dignity and privacy" (§ 3771(a)(8)), "to be reasonably protected from the
20 accused" (§ 3771(a)(1)), and "to proceedings free from unreasonable delay" (§ 3771(a)
21 (7)).

1 Most significantly, § 3771(b)(1) creates an affirmative obligation for courts to "ensure
2 that the crime victim is afforded the rights described in subsection (a)." This provision
3 creates a mandatory duty, not a discretionary one. *See In re Dean*, 527 F.3d 391, 394 (5th
4 Cir. 2008) (noting the "mandatory nature" of the CVRA).

5 Judge Cota's conduct—including denying disability accommodations, allowing
6 prejudicial delays, failing to rule on Plaintiff's motions for preliminary injunctive relief,
7 and failing to enforce mandatory reporting requirements—directly violates these statutory
8 obligations. As the Eleventh Circuit emphasized in *In re Stewart*, 552 F.3d 1285, 1288
9 (11th Cir. 2008), "The CVRA... enlists the district court as the guardian of the rights
10 listed in the CVRA."

11 Similarly, California's Constitution creates enforceable victims' rights under Article 1,
12 section 28, including the right to be treated with "fairness and respect for his or her
13 privacy and dignity" (§ 28(b)(1)) and the right to "a speedy trial and a prompt and final
14 conclusion of the case" (§ 28(b)(9)). These rights are not aspirational but are legally
15 enforceable. *See Dix v. Superior Court*, 53 Cal. 3d 442, 452 (1991).

16 **F. Refusal to Enforce Mandatory Civil Rights Laws**

17 Judge Cota has categorically refused to enforce 42 U.S.C. § 1987, which explicitly
18 mandates that judges "institute prosecutions against all persons violating any of the
19 provisions of [the civil rights statutes]." This provision creates a non-discretionary duty to
20 act when presented with evidence of civil rights violations, which Plaintiff has
21 abundantly provided.

1 The Supreme Court has long recognized that civil rights statutes must be "accorded a
2 sweep as broad as [their] language." *Griffin v. Breckenridge*, 403 U.S. 88, 97 (1971)
3 (discussing 42 U.S.C. § 1985(3)). Judge Cota's selective refusal to enforce these
4 provisions demonstrates bias and contravenes these binding precedents.

5 This selective enforcement is particularly troubling in light of the Supreme Court's
6 recognition in *United States v. Price*, 383 U.S. 787, 801 (1966), that civil rights statutes
7 should be construed with awareness that they were enacted "against the background of
8 the congressional purpose... 'to secure to all citizens the liberty to exercise without
9 unlawful interference their constitutional rights and privileges.'"

10 Judge Cota's failure to enforce these provisions—when presented with substantial
11 evidence of violations—demonstrates prejudice against Plaintiff and his claims, further
12 supporting disqualification under 28 U.S.C. § 455(b)(1).

13 **G. Failure to Acknowledge or Enforce Mandatory Reporting Requirements**

14 Judge Cota has failed to acknowledge or enforce mandatory reporting requirements under
15 California law for crimes occurring on state property or involving state resources.
16 California Government Code § 14613.7 and its implementing regulations at Title 13,
17 California Code of Regulations, Division 2, Chapter 12, Section 1875, create non-
18 discretionary duties to report such crimes to the California Highway Patrol using the
19 "STD. 99" form.

20 As the California Court of Appeal emphasized in *People v. Nguyen*, 155 Cal.App.4th
21 1154, 1161-62 (2007), these procedures are "designed to protect both the public interest
22 and the rights of the accused." Judge Cota's failure to acknowledge or enforce these

requirements—particularly when Plaintiff has specifically identified statutory violations occurring on state property and involving state resources—further demonstrates bias against Plaintiff and his claims.

H. Appearance of Partiality

Even if actual bias could not be conclusively established (though the record amply demonstrates such bias), the appearance of impartiality has been irreparably compromised by Judge Cota's actions and inactions. The standard for recusal under 28 U.S.C. § 455(a) is whether "a reasonable person with knowledge of all the facts would conclude that the judge's impartiality might reasonably be questioned." *United States v. Holland*, 519 F.3d 909, 913 (9th Cir. 2008).

The Ninth Circuit has emphasized that "section 455(a) concerns not only fairness to individual litigants, but also... the public's confidence in the judiciary, which may be irreparably harmed if a case is allowed to proceed before a judge who appears to be tainted." *In re Cement Antitrust Litig.*, 688 F.2d 1297, 1313 (9th Cir. 1982). Judge Cota's pattern of conduct—denying ADA accommodations without proper procedure, weaponizing these denials against Plaintiff, failing to enforce mandatory statutory provisions, and systematically disregarding Plaintiff's rights as a crime victim—creates precisely the appearance of partiality that § 455(a) was designed to prevent.

As the Supreme Court emphasized in *Liljeberg v. Health Services Acquisition Corp.*, 486 U.S. 847, 864 (1988), "The very purpose of § 455(a) is to promote confidence in the judiciary by avoiding even the appearance of impropriety whenever possible." Judge

Cota's conduct in this case has created the unmistakable appearance of bias against Plaintiff and prejudgment of the merits of his claims.

I. Judge Cota's Improper Handling of § 144 Motion

Judge Cota's summary denial of Plaintiff's March 17, 2025 Motion to Disqualify filed pursuant to 28 U.S.C. § 144 itself constitutes judicial misconduct warranting disqualification. Under *Berger v. United States*, 255 U.S. 22, 35-36 (1921), when a legally sufficient affidavit is filed under § 144, "the judge has no discretion" but must step aside.

The Supreme Court has emphasized that the statute "has no ambiguity" and "leaves to the judge no function but the duty to decide the legal sufficiency of the affidavit." *Id.* Judge Cota failed to perform even this limited function, instead summarily denying the motion without substantive consideration of the affidavit's legal sufficiency.

This improper handling directly contravenes Ninth Circuit precedent established in *United States v. Azhocar*, 581 F.2d 735, 739 (9th Cir. 1978), which requires that "the judge must pass on the legal sufficiency of the affidavit, but not on the truth or falsity of the facts alleged." As the Seventh Circuit emphasized in *United States v. Balistrieri*, 779 F.2d 1191, 1202 (7th Cir. 1985), a judge's "duty to disqualify himself under section 144 is not discretionary if the affidavit is sufficient."

Judge Cota's failure to follow these binding precedents—instead summarily denying Plaintiff's motion without determining the legal sufficiency of the affidavit—itself constitutes bias warranting disqualification. As recognized in *Greenspan v. Klein*, 442 F. Supp. 860, 861 (D.N.J. 1977), "Section 144 is essentially a peremptory challenge and

1 must be given the utmost of strict construction to safeguard the judiciary from frivolous
2 attacks upon its dignity... but this strict construction cannot be pressed to the point of
3 relieving a judge from the duty of disqualifying himself in any case within the statutory
4 provision."

5 **J. Judge Cota's Own Articulated Legal Standard Requires Disqualification**

6 Most tellingly, Judge Cota himself has articulated the proper legal standard for evaluating
7 claims in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025),
8 acknowledging that a court must "construe the alleged facts in the light most favorable to
9 the plaintiff" and resolve "all ambiguities or doubts" in the plaintiff's favor. Applying this
10 standard to the present petition—as Judge Cota is bound to do by principles of judicial
11 consistency and fundamental fairness—compels the conclusion that disqualification is
12 warranted.

13 The stark inconsistency between Judge Cota's articulated legal standards in *Dunham* and
14 his application of the law in the present case further demonstrates the appearance of
15 partiality that necessitates disqualification under § 455(a).

16 **VI. IMMEDIATE HARM REQUIRING A TEMPORARY RESTRAINING ORDER**

17 Plaintiff's constitutional rights face imminent, irreparable harm from Defendants' ongoing
18 actions, necessitating immediate issuance of a temporary restraining order pursuant to
19 Federal Rule of Civil Procedure 65(b). Without such intervention, Plaintiff will suffer
20 permanent deprivation of fundamental constitutional rights, including:

1 **1. The Right to Equal Protection:** The Fourteenth Amendment's guarantee of equal
2 protection is being systematically violated through disability-based discrimination
3 that prevents Plaintiff from participating in the electoral process on an equal basis
4 with non-disabled candidates. *See Tennessee v. Lane*, 541 U.S. 509, 522-23 (2004)
5 (recognizing that "failure to accommodate persons with disabilities will often
6 have the same practical effect as outright exclusion").

7 **2. The Right to Due Process:** The Fifth and Fourteenth Amendments' guarantee of
8 due process is being violated through arbitrary procedures that deny Plaintiff
9 notice and an opportunity to be heard in a meaningful manner. *See Mathews v.*
10 *Eldridge*, 424 U.S. 319, 333 (1976) (emphasizing that "[t]he fundamental
11 requirement of due process is the opportunity to be heard at a meaningful time and
12 in a meaningful manner").

13 **3. First Amendment Rights:** Plaintiff's First Amendment right to petition the
14 government for redress of grievances is being impaired through procedural
15 obstacles that effectively prevent meaningful access to judicial remedies. *See Bill*
16 *Johnson's Restaurants, Inc. v. NLRB*, 461 U.S. 731, 741 (1983) (recognizing the
17 constitutional dimension of "the right of access to the courts").

18 **4. Electoral Participation Rights:** The fundamental right to participate in the
19 electoral process—a right the Supreme Court has recognized as "preservative of
20 other basic civil and political rights," *Reynolds v. Sims*, 377 U.S. 533, 562 (1964)
21 —is being systematically denied through discriminatory ballot access
22 requirements.

1 As the Supreme Court has unequivocally held, "The loss of First Amendment freedoms,
2 for even minimal periods of time, unquestionably constitutes irreparable injury." *Elrod v.*
3 *Burns*, 427 U.S. 347, 373 (1976). This principle applies with equal force to all
4 fundamental constitutional rights. *See, e.g., Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th
5 Cir. 2012) (recognizing that "the deprivation of constitutional rights 'unquestionably
6 constitutes irreparable injury'" (quoting *Elrod*, 427 U.S. at 373)).

7 The traditional four-factor test for temporary restraining orders compellingly favors
8 Plaintiff:

9 **1. Likelihood of Success on the Merits:** The undisputed evidence demonstrates
10 systematic violations of constitutional and statutory rights, including violations of
11 the ADA, Section 504, and criminal civil rights statutes. The Supreme Court's
12 recent decision in *Trump v. Anderson*, No. 23-719, 601 U.S. (2024), provides
13 controlling precedent establishing that states cannot unilaterally impose additional
14 qualifications for federal office beyond those established in the Constitution.

15 **2. Irreparable Harm:** As established in *Elrod*, the deprivation of constitutional
16 rights constitutes irreparable injury per se. Moreover, the unique context of
17 electoral matters creates temporal constraints that make ordinary post-judgment
18 remedies inadequate. *See Williams v. Salerno*, 792 F.2d 323, 326 (2d Cir. 1986)
19 (recognizing that "the registration applicants would certainly suffer irreparable
20 harm if their right to vote were impinged upon").

21 **3. Balance of Equities:** The constitutional violations far outweigh any
22 administrative burden on Defendants. As the Supreme Court emphasized in

1 *Frontiero v. Richardson*, 411 U.S. 677, 690 (1973), "administrative convenience"
2 cannot justify practices that burden fundamental rights.

3 4. **Public Interest:** As the Ninth Circuit has definitively held, "it is always in the
4 public interest to prevent the violation of a party's constitutional rights."

5 *Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th Cir. 2012) (internal quotation marks
6 omitted). The public interest is further served by ensuring that electoral processes
7 remain accessible to all qualified candidates, including those with disabilities.

8 The necessity for immediate intervention is underscored by the Supreme Court's
9 recognition in *Reynolds v. Sims* that "[t]he right to vote freely for the candidate of one's
10 choice is of the essence of a democratic society, and any restrictions on that right strike at
11 the heart of representative government." 377 U.S. 533, 555 (1964). The systematic
12 exclusion of qualified candidates with disabilities from the electoral process poses an
13 existential threat to these core democratic values that demands immediate judicial
14 intervention.

15 **VII. CONCLUSION AND PRAYER FOR RELIEF**

16 Judge Cota's pattern of conduct—denying disability accommodations without proper
17 procedure, weaponizing these denials against Plaintiff, failing to enforce mandatory
18 statutory provisions, and systematically disregarding Plaintiff's rights as a crime victim—
19 creates both actual bias and the appearance of partiality that mandates disqualification
20 under 28 U.S.C. §§ 144 and 455. This conduct violates the bedrock principle articulated
21 by the Supreme Court that "justice must satisfy the appearance of justice." *In re*
22 *Murchison*, 349 U.S. 133, 136 (1955).

1 As Justice Felix Frankfurter powerfully articulated, "The guiding consideration is that the
2 administration of justice should reasonably appear to be disinterested as well as be so in
3 fact." *Public Utilities Comm'n v. Pollak*, 343 U.S. 451, 467 (1952) (Frankfurter, J.,
4 recusing). Judge Cota's conduct in this case fails this essential test, rendering
5 disqualification not merely appropriate but essential to preserving both the reality and
6 appearance of impartial justice.

7 WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

- 8 1. Issue a writ of prohibition IMMEDIATELY disqualifying Judge Dennis M. Cota
9 from further involvement in Case No. 2:2025CV00404 pursuant to 28 U.S.C. §§
10 A144 and 455;
- 11 2. Reassign this case FORTHWITH to another judge who can provide fair and
12 impartial consideration of Plaintiff's claims;
- 13 3. Issue a temporary restraining order IMMEDIATELY against Defendants to
14 preserve Plaintiff's constitutional rights pending resolution of this case;
- 15 4. Order an expedited hearing on Plaintiff's request for preliminary injunctive relief;
- 16 5. Declare that Plaintiff is entitled to reasonable accommodations under the ADA
17 and Section 504, including additional time to file pleadings and responses;
- 18 6. Order the immediate implementation of appropriate accommodations to ensure
19 Plaintiff's meaningful access to judicial proceedings; and
- 20 7. Grant such other and further relief as this Court deems just and proper under the
21 extraordinary circumstances presented.

1 Dated: April 18, 2025

2 **Respectfully submitted,**

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6 **Mathew Tyler**

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VERIFICATION

I, Mathew Tyler, declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct to the best of my knowledge and belief.
Executed on April 18, 2025, at Butte County, California.



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